

SENATE No. 1271

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to protecting the people of the Commonwealth from danger.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>3/13/2025</i>

SENATE No. 1271

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 1271) of Bruce E. Tarr for legislation to protect the people of the Commonwealth from criminal offenders. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to protecting the people of the Commonwealth from danger.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 “SECTION 3A. Chapter 268 of the General Laws is hereby amended by inserting after
2 section 13E the following section:-

3 Section 13F. Whoever unlawfully and with intent removes, destroys, damages or
4 interferes with the proper functioning of a geolocation monitoring device or other mechanism
5 intended to facilitate recognizance or compliance with conditions of pretrial release, probation or
6 parole shall be punished by imprisonment in a house of correction for not more than 2 and one-
7 half years; provided, however, that a second and subsequent offense shall be punished by
8 imprisonment in the state prison for not more than 5 years or imprisonment in a house of
9 correction for not more than 2 and one-half years. In any proceeding under section 57 to 58B,
10 inclusive, of chapter 276, the fact of a person’s prior conviction pursuant to this section shall be
11 prima facie evidence that there is no financial condition or other condition of release that will
12 reasonably assure the presence of the person so convicted.

SECTION 3B. Section 58A of chapter 276 of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by inserting after the word “or”, in line 8, the following words:- a sex offense involving a child as defined in section 178C of chapter 6, or a violation of sections 13, 13½, 13B, 13B½, 13B¾, 13F, 13M, 15D, 18B, 22, 22A, 22B, 22C, 23A, 23B, 24, 25, 26B, 26C, 37, 43A, 50 or 51 of chapter 265, or a violation of section 23 of chapter 265; provided, however, that this clause shall not apply when the person charged pursuant to said section 23 of said chapter 265 is under 16 years of age or is within 2 years of the age of the alleged victim.

SECTION 3C. Said chapter 276 is hereby further amended by inserting after section 58B the following section:-

Section 58C. No person who has attained the age of 18 years and who has been charged with any act that would constitute abuse, as defined in section 1 of chapter 209A, or a violation of sections 13M or 15D of chapter 265 or any offense enumerated in subsection 1 of section 58A that involves an identified victim shall be admitted to bail before all reasonable efforts are made to notify the alleged victim of the person’s imminent release; provided, however, that the person charged shall not be held more than 6 hours in order to permit prior notice to the alleged victim.

When a person so charged is to be released from the custody of a police department, such notice shall be provided by the police department. When a person so charged is to be released from a courthouse, such notice shall be provided by the commonwealth. When a person so charged is to be released from a jail or correctional facility, such notice shall be provided by the superintendent or a designee. The person or agency responsible for providing notice shall undertake to provide notice promptly.”.